

HOUSE No. 5339

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 425) of Jack Patrick Lewis (by vote of the town) that the town of Ashland be authorized to grant licenses for the sale of alcoholic beverages to be drunk on the premises, reports recommending that the accompanying bill (House, No. 5339) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

HOUSE No. 5339

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Ashland to grant 10 additional licenses for the sale of all alcoholic beverages to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Ashland may grant 10 additional licenses for the sale of all
3 alcoholic beverages to be drunk on the premises pursuant to section 12 of said chapter 138 to
4 establishments located within the 3 development zones described in subsection (b) upon approval
5 of and under conditions set by the licensing authority of the town of Ashland. A license granted
6 under this act shall be clearly marked on its face either “Downtown Redevelopment”, “Rt. 126
7 Redevelopment”, or “MBTA Zone”, as applicable, and shall be subject to all of said chapter 138
8 except said section 17.

9 (b) The licensing authority shall restrict the 10 licenses authorized in this act as follows:

10 (1) Three licenses shall be issued to establishments located within the town’s “Downtown
11 Redevelopment” district as shown on a map entitled “House No. 425, Town of Ashland
12 Additional Liquor License Request” dated March 23, 2026, a copy of which is on file in the
13 office of the town clerk;

(2) Three licenses shall be issued to establishments located within the town's "Rt. 126 Redevelopment" district as shown on a map entitled "House No. 425, Town of Ashland Additional Liquor License Request" dated March 23, 2026, a copy of which is on file in the office of the town clerk; and

(3) Four licenses shall be issued to establishments located within the town's "MBTA Zone" district as shown on a map entitled "House No. 425, Town of Ashland Additional Liquor License Request" dated March 23, 2026, a copy of which is on file in the office of the town clerk.

(c) A license granted pursuant to this section shall only be exercised in the dining room of a common victualler and in such other public rooms or areas as may be deemed reasonable and appropriate by the licensing authority as certified in writing.

(d) The licensing authority shall not approve the transfer of a license granted pursuant to this act to a location outside of the initial zoned areas as described in paragraph (1), (2) or (3) of subsection (b), but it may grant a license to a new applicant within such initial zoned area if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(e) If a licensee terminates or fails to renew a license granted under this act or any such license granted under this act is cancelled, revoked or no longer in use, the license shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant under the same conditions specified in this act.

36 (f) All licenses granted under this act shall be issued within 5 years after the effective
37 date of this act; provided, however, that a license originally granted within that time period may
38 be granted to a new applicant under subsections (d) or (e) thereafter.

39 SECTION 2. This act shall take effect upon its passage.